

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ARIAS PANAYOTY and SABA YEHIA

Plaintiff,

SUMMONS

against-

Index No.

NEW YORK CITY POLICE OFFICER MICHAEL GONZALEZ,
71st Precinct, Shield No. 5947, in his individual official capacity
as employee of the City of New York

Defendants.

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To the above-named Defendant:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York

January 25, 2023

Attorney(s) for the Plaintiff

Douglas G. Rankin, Esq.
Reg #2978831
175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ARIAS PANAYOTY and SABA YEHA

Plaintiff,

COMPLAINT

against-

Index No.

NEW YORK CITY POLICE OFFICER MICHAEL GONZALEZ,
71st Precinct, Shield No. 5947, in his individual official capacity
as employee of the City of New York

Defendant.

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The Plaintiffs, ARIAS PANAYOTY and SABA YEHA, through their attorney Douglas G. Rankin, Esq., alleges the following, upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution and negligence against the police officer mentioned above in their individual official capacity as employee of the City of New York.
2. It is alleged that these defendant maliciously prosecuted, violating Plaintiff ARIAS PANAYOTY'S rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution and committed negligence as to Plaintiff SABA YEHA.
3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

STATUTE OF LIMITATIONS TOLLED

4. The statute of limitations period applicable to §1983 suits is three (3) years from date of accrual. The statutes of limitation were “tolled” in New York by Executive Order No. 202.8, issued by Governor Andrew M. Cuomo on March 20, 2020, in response to the COVID-19 pandemic. Over the next six-and-a-half months, that toll was renewed by further executive order every 30 days until, on October 4, 2020, the Governor issued Executive Order No. 202.67, announcing that the tolling order would be extended for only one more 30-day period “until November 3, 2020, and after such date [statutes of limitation] will no longer be tolled.” On November 3, 2020, the Governor issued Executive Order No. 202.72, confirming that the tolling period would no longer be in effect beginning November 4, 2020. A total tolling period of 228 days. All criminal charges against Plaintiff Panayoty was dismissed June 13, 2019. Plaintiff Yehia became aware of Defendant’s negligence on or about June 13, 2019, the date the criminal charges against Plaintiff Panayoty were dismissed and vehicle released.

PARTIES

5. Plaintiffs were at all material times a resident of Kings, New York and of proper age to commence this lawsuit.

6. Defendant New York City Police Officer Michael Gonzalez (hereinafter “Officer Gonzalez”) was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the

statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

7. The City was at all material times the public employer of defendant named herein.

FACTUAL ALLEGATIONS

8. Officer Gonzalez alleged that on or about January 8, 2019 between 8:11pm and 9:01 pm at 1120 President Street as well as 421 Empire Boulevard, County of Kings, State of New York, Officer Gonzalez alleged observing a black Mercedes Benz parked at a fire hydrant.

9. Officer Gonzalez alleged that upon approaching said vehicle, he observed Plaintiff Panayoty sitting in the driver's seat, with the engine running and smelled marijuana emanating from the vehicle. Officer Gonzalez alleged that he observed at Plaintiff's inspection certificate affixed to the windshield of said vehicle to have been expired.

10. Officer Gonzalez also alleged observing marijuana cigarettes inside the ashtray of Plaintiff Panayoty 's vehicle. Officer Gonzalez further alleged that Plaintiff Panayoty refused to surrender the keys to said vehicle. Officer Gonzalez also alleged having recovered an illegal gravity knife from the center console of said vehicle.

11. Plaintiff Panayoty was arrested and charged with obstructing governmental administration, unlawful possession of marijuana, operating of motor vehicle, idling engine and criminal possession of a weapon.

12. Plaintiff Panayoty denied all criminal allegations cited by Officer Gonzalez and maintained his innocence throughout the criminal case. On or about June 13, 2019 the district attorney's office dismissed all charges against Plaintiff Panayoty.

13. During Plaintiff Panayoty's arrest, Plaintiff Yehia, the legal owner of the vehicle requested to take possession of the same, but Officer Gonzalez refused and instead took possession of same. Upon regaining possession of the vehicle, after the dismissal of the criminal case, Plaintiffs were caused to pay monies for vehicle repairs.

14. The damage was as a result of Officer Gonzalez' refusing to initially release the vehicle to the legal owner, Plaintiff Yehia. Officer Gonzalez further failed to safeguard said vehicle resulting in said vehicle damage.

15. Plaintiff Panayoty was arrested near a juice bar/restaurant owned by both Plaintiffs. Said business closed as result of the arrest, resulting in lost revenue.

COUNT ONE

42 U.S.C. § 1983

Malicious Prosecution

Against Individual Defendant Officer Michael Gonzalez

16. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

17. Defendant initiated a prosecution against Plaintiff Panayoty.

18. Defendant lacked probable cause to believe the proceeding could succeed

19. Defendant acted with malice, and

20. The prosecution was terminated in Plaintiff Panayoty's favor.

21. As a direct and proximate result of the malicious prosecution detailed above, Plaintiff Panayoty sustained the damages herein alleged.

COUNT TWO

Negligence

Against Individual Defendant Officer Michael Gonzalez

22. Defendant failed to turn over the Mercedes Benz to the lawful owner Plaintiff Yehia, and therefore had a duty to safeguard Plaintiff Yehia's vehicle.

23. Defendant breached said duty by failing to safeguard said vehicle

24. Plaintiff Yehia's vehicle was damaged while in Defendant's possession and as result of Defendant's failure to safeguard said vehicle.

25. But for Defendant having failed to turn over said vehicle to Plaintiff Yehia at the time of Plaintiff Panayoty's arrest and subsequently failing to safeguard said vehicle, damage was caused.

26. Defendant knew there was no probable cause to arrest Plaintiff Panayoty and subsequently, no authority to seize Plaintiff Yehia's vehicle and subsequently should have foreseen the probability that Plaintiff Yehia's vehicle could be damaged as a result of seizing said vehicle and not safeguarding same.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

- (a) Award compensatory damages against the
- (b) Award punitive damages against the individual Defendant
- (c) Award costs of this action to the Plaintiffs.

(d) Award reasonable attorneys' fees and costs to the Plaintiffs
pursuant to 28 U.S.C. § 1988.

DATED: January 25, 2023
Brooklyn, New York

The Plaintiff,



Douglas G. Rankin, Esq.

Reg #2978831

175 Pearl Street, Suite 215

Brooklyn, New York 11201

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Defendant New York City Police Officer Michael Gonzalez
71st Police Precinct
421 Empire Boulevard
Brooklyn, New York 11225